U-749

V-56,988

ARTICLES OF INCORPORATION

OF

SUMMERHILL ASSOCIATION, INC.

We, the undersigned, for the purposes of forming a corporation pursuant to the provisions of the Minnesota Non-Profit Corporation Act (Minnesota Chapter 317, as amended) hereby adopt the following Articles of Incorporation:

ARTICLE I

NAME

The name of this Corporation shall be "SUMMERHILL ASSOCIATION, INC."

ARTICLE II

PURPOSES AND POWERS

The purposes for which the Corporation is formed, and its powers, are as follows:

a. To act as the Association which is referred to in the Declaration of Covenants, Easements and Restrictions of SummerHill Condominium (the "Declaration") filed or to be filed pursuant to the Uniform Condominium Act in the office of the Hennepin County Recorder, Minneapolis, Minnesota, which Association will provide for the operation and management of SummerHill Condominium, for the health, safety and welfare of the Unit Owners thereof and for the preservation of the value and aesthetic character of the condominium.

b. To act as a "condominium management association" within the meaning of Section 528 of the Internal Revenue Code of 1954, as amended from time to time; and

c. To do any other lawful acts or things reasonably necessary or desirable for carrying out the Corporation's purposes, and for furthering and protecting the lawful rights and interests of its Members in connection therewith.

ARTICLE III

NO PECUNIARY GAIN

This Corporation shall not afford pecuniary gain, incidentally or otherwise, to its Members; provided that Members may be compensated for goods and services furnished to the Association in their individual capacities as provided in the Corporation's By-Laws.

ARTICLE IV

DURATION

The duration of this Corporation shall be perpetual.

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ARTICLE V

REGISTERED OFFICE

The location of the registered office of this Corporation shall be 7801 East Bush Lake Road, Suite 224, Bloomington, Minnesota 55435.

ARTICLE VI

INCORPORATOR

The name and address of the incorporator of this Corporation is as follows:

Diane M. Bump	7801 East Bush Lake Road Suite 224 Bloomington, Minnesota 55435

ARTICLE VII

DIRECTORS

The business of this Corporation shall be managed by the Board of Directors consisting of at least three persons. The names and addresses of the persons who are to serve as members of the first Board of Directors until the first annual meeting of the Corporation, or as otherwise provided in the By-Laws, are as follows:

Gary N. Conners	7801 East Bush Lake Road Suite 224 Bloomington, Minnesota 55435
Diane M. Bump	7801 East Bush Lake Road Suite 224 Bloomington, Minnesota 55435
John J. Appert	7801 East Bush Lake Road Suite 224 Bloomington, Minnesota 55435

ARTICLE VIII

LIABILITY

The Members of this Corporation shall not be subject to any personal liability for corporate obligations.

ARTICLE IX

CAPITAL STOCK

This Corporation shall have no capital stock. Cumulative voting by Members shall not be permitted.

ARTICLE X

MEMBERS

The Members of this Corporation shall be those persons described as Members in the By-Laws of the Corporation.

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ARTICLE XI

ADOPTION OF BY-LAWS

The first Board of Directors shall, upon the first meeting thereof, adopt By-Laws for the regulation of the business of the Corporation.

ARTICLE XII

MEETINGS

The Corporation shall hold meetings of its Members, at such time and in such manner as shall be specified in the By-Laws.

ARTICLE XIII

AMENDMENTS

Amendment of these Articles shall require the prior approval of Members who hold at least two-thirds (2/3) of the voting power of all Members, (i) in writing, or (ii) at a meeting duly held for such purposes, subject to the rights of First Mortgagees as set forth in the Declaration.

ARTICLE XIV

DISSOLUTION

Upon dissolution of the Corporation and termination of the condominium, after payment of all the debts and obligations of the Corporation, all remaining corporate assets shall be distributed to each Member of the Corporation and holder of an interest as security for an obligation, including First Mortgagees, as their interests may appear, in accordance with Section 515A.2-120 of the Uniform Condominium Act.

IN WITNESS WHEREOF, I have subscribed my name on this 5th day of March, 1982.

Diane M. Bump
Diane M. Bump

STATE OF MINNESOTA)
) SS
COUNTY OF HENNEPIN)

The foregoing instrument was acknowledged before me this 5th day of March, 1982, by Diane M. Bump, incorporator.

Notary Public

DAVID B. EIDE
HENNEPIN COUNTY
NOTARY PUBLIC-MINNESOTA
MY COMMISSION EXPIRES JUNE 11 1985

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STATE OF MINNESOTA

DEPARTMENT OF STATE

To All To Whom These Presents Shall Come, Greeting:

Whereas, Articles of Incorporation, duly signed and acknowledged under oath, have been recorded in the office of the Secretary of State, on the 10th day of March, A. D. 1982 for the incorporation of

SUMMERHILL ASSOCIATION, INC.

under and in accordance with the provisions of the Minnesota Nonprofit Corporation Act, Minnesota Statutes, Chapter 317;

Now, Therefore, by virtue of the powers and duties vested in me by law, as Secretary of State of the State of Minnesota, I do hereby certify that the said

SUMMERHILL ASSOCIATION, INC.

is a legally organized Corporation under the laws of this State.

Witness my official signature hereunto subscribed and the Great Seal of the State of Minnesota hereunto affixed this Tenth day of March in the year of our Lord one thousand nine hundred and Eighty-Two

Joan Anderson Growe
Secretary of State.

SC-00019-02